

FUNDAMENTAL RIGHTS — PART III (ART. 12–35)

Detailed Clause-by-Clause Analysis & Exhaustive Judicial Precedents

1. Articles 12–18 Overview (Foundations & Equality)

Article 12 (Definition of State): Covers Govt, Parliament, State Legislatures, Local & Other Authorities. (*Ramana Dayaram Shetty, Ajay Hasia, Pradeep Kumar Biswas*).

Article 13 (Laws Inconsistent with FRs): Clauses 13(1) Pre-constitutional laws, 13(2) Post-constitutional laws, 13(3) Definition of Law, 13(4) Constitutional Amendments exception (overruled by Basic Structure doctrine in *Kesavananda Bharati*).

Articles 14–18 (Right to Equality): Art 14 (Equality before law & equal protection), Art 15 (Prohibition of discrimination; 15(1)–15(6)), Art 16 (Equality in public employment; 16(1)–16(6)), Art 17 (Abolition of Untouchability), Art 18 (Abolition of Titles).

2. Article 19 — Granular Clause Breakdown & Reasonable Restrictions

CLAUSE & RIGHT	SCOPE & KEY PRINCIPLES	PERMISSIBLE GROUNDS FOR RESTRICTION	LANDMARK CASES
19(1)(a) Freedom of Speech & Expression	Includes freedom of press, right to remain silent, right to information, commercial speech.	19(2): Sovereignty/integrity of India, security of State, foreign relations, public order, decency/morality, contempt of court, defamation, incitement.	<i>Romesh Thappar v. State of Madras</i> (1950) <i>Bennett Coleman v. UOI</i> (1972) <i>Bijoe Emmanuel</i> (1986) <i>Shreya Singhal v. UOI</i> (2015)
19(1)(b) Freedom of Peaceful Assembly	Right to hold public meetings and processions without arms. Does not include right to strike.	19(3): Sovereignty & integrity of India, Public order.	<i>Himmat Lal v. Police Commissioner</i> (1973) <i>Kameshwar Singh v. State of Bihar</i> (1962)
19(1)(c) Form Associations / Unions / Co-operatives	Right to form trade unions, political parties, societies, co-operative societies (added by 97th Amendment).	19(4): Sovereignty & integrity of India, Public order, Morality.	<i>All India Bank Employees Association</i> (1962) <i>T.K. Rangarajan v. Govt of TN</i> (2003)
19(1)(d) Move Freely Throughout India	Right to movement inside national boundaries. (External travel covered under Art 21).	19(5): General public interest, Protection of interests of Scheduled Tribes.	<i>N.B. Khare v. State of Delhi</i> (1950) <i>State of UP v. Kaushaliya</i> (1964)
19(1)(e) Reside and Settle in any Part	Right to reside temporarily or settle permanently anywhere in India.	19(5): General public interest, Protection of interests of Scheduled Tribes.	<i>Ibrahim Wazir v. State of Bombay</i> (1954)
	Right to carry out any trade or business. Does not include trade		<i>Chintaman Rao v. State of MP</i> (1951)

CLAUSE & RIGHT	SCOPE & KEY PRINCIPLES	PERMISSIBLE GROUNDS FOR RESTRICTION	LANDMARK CASES
19(1)(g) Practise Profession / Trade / Business	in inherently dangerous goods (liquor, gambling).	19(6): General public interest, technical qualifications, creation of State monopolies.	<i>Sodhan Singh v. New Delhi Municipal Committee (1989)</i>

3. Article 20 — Protection in Respect of Conviction for Offences

- **Clause 20(1) — Protection Against Ex-Post-Facto Laws:** No person can be convicted under a law that was not in force at the time of the commission of the act, nor subjected to a penalty greater than that prescribed at the time of commission. Applies exclusively to criminal laws, not civil liabilities (*Ratan Lal v. State of Punjab, 1965; Kedar Nath v. State of West Bengal, 1953*).
- **Clause 20(2) — Protection Against Double Jeopardy:** No person shall be prosecuted and punished for the same offence more than once. Prosecution must be before a judicial court or tribunal (*Maqbool Hussain v. State of Bombay, 1953; Thomas Dana v. State of Punjab, 1959*).
- **Clause 20(3) — Protection Against Self-Incrimination:** No person accused of an offence shall be compelled to be a witness against himself.

Key Cases: **State of Bombay v. Kathi Kalu Oghad (1961)** Giving thumb impressions, handwriting samples, or physical signature does not violate Art 20(3).

Nandini Satpathy v. P.L. Dani (1978) Protection extends to police interrogation stage.

Selvi v. State of Karnataka (2010) Involuntary narco-analysis, polygraph tests, and brain-mapping violate Art 20(3) & 21.

4. Article 21 & 21A — Protection of Life, Personal Liberty & Education

Article 21: Expanding Horizons of Life & Liberty

Text: "No person shall be deprived of his life or personal liberty except according to procedure established by law."

- **A.K. Gopalan v. State of Madras (1950)** Narrow interpretation; "Procedure established by law" meant legislative procedure only.
- **Maneka Gandhi v. Union of India (1978)** Overruled Gopalan. Procedure must be *Fair, Just, and Reasonable* (imbibed Due Process). Interlinked Arts 14, 19, and 21 (Golden Triangle).
- **K.S. Puttaswamy v. Union of India (2017)** 9-Judge Bench unanimously held that **Right to Privacy** is an intrinsic part of Art 21.

Judicially Evolved Rights under Article 21

Right to clean environment (*MC Mehta*), Right to free legal aid (*Hussainara Khatoon*), Right to speedy trial (*Abdul Rehman Antulay*), Right to shelter (*Olga Tellis*), Right to die with dignity / Passive Euthanasia (*Common Cause, 2018*).

Article 21A: Right to Education

Inserted by **86th Constitutional Amendment Act, 2002**. Mandates the State to provide free and compulsory education to all children aged 6 to 14 years. Supported by the *Right of Children to Free and Compulsory Education (RTE) Act, 2009* (Upheld in *Society for Unaided Private Schools of Rajasthan v. UOI, 2012*).

5. Article 22 — Protection Against Arrest & Preventive Detention

CATEGORY	CLAUSES	GUARANTEES & SAFEGUARDS
Punitive Detention Safeguards	22(1) & 22(2)	1. Right to be informed as soon as may be of grounds of arrest. 2. Right to consult and be defended by a legal practitioner. 3. Right to be produced before nearest magistrate within 24 hours. 4. No detention beyond 24 hours without magistrate's authority.
Exceptions	22(3)	Safeguards under 22(1) & 22(2) do not apply to: (a) Enemy aliens, or (b) Persons arrested under preventive detention laws.
Preventive Detention Safeguards	22(4) to 22(7)	1. Detention cannot exceed 3 months unless Advisory Board approves extension. 2. Detenu must be communicated grounds of detention (unless against public interest). 3. Detenu must be afforded earliest opportunity to make representation (<i>AK Roy v. UOI, 1982</i>).

6. Articles 23–24 — Right Against Exploitation

• Article 23: Prohibition of Traffic in Human Beings and Forced Labour

- **23(1):** Traffic in human beings, *begar* (unpaid forced labour), and other similar forms of forced labour are prohibited.
- **23(2):** Exception: State can impose compulsory service for public purposes (military, social service) without discrimination on grounds only of religion, race, caste, or class.
- *Landmark Cases:* **PUDR v. Union of India (1982)** Payment of wages below minimum prescribed rates constitutes forced labour. **Bandhua Mukti Morcha (1984)** Supreme Court issued guidelines for identification and rehabilitation of bonded labourers.

• Article 24: Prohibition of Child Labour

- Prohibits employment of children below 14 years in any factory, mine, or other hazardous employment.
- *Landmark Case:* **M.C. Mehta v. State of Tamil Nadu (1996)** Directed creation of Child Labour Rehabilitation Welfare Fund in Sivakasi child labour case.
- *Enforcing Act:* Child and Adolescent Labour (Prohibition and Regulation) Act, 1986 (amended in 2016 banning employment of children under 14 in all occupations).

7. Articles 25–28 — Right to Freedom of Religion

ARTICLE	CORE PROVISION & CLAUSE DETAILS	GROUND / KEY PRECEDENTS
Article 25 Freedom of Conscience & Profession	25(1): Freedom of conscience and right freely to profess, practise, and propagate religion. 25(2): State can regulate secular activities & throw open Hindu religious institutions to all classes.	Subject to Public order, Morality, Health & Part III. <i>Shirur Mutt Case (1954)</i> (Essential Religious Practices Test); <i>Bijoe Emmanuel (1986)</i> (National Anthem case); <i>Sabarimala Case (2018)</i> .
Article 26 Denominational Freedom	Right of religious denominations to: (a) Establish & maintain institutions, (b) Manage own affairs in matters of religion, (c) Own/acquire property, (d) Administer property.	Subject to Public order, Morality, Health. <i>S.P. Mittal v. UOI (1983)</i> (Auroville held not a religious denomination).

ARTICLE	CORE PROVISION & CLAUSE DETAILS	FOUNDATIONS / KEY PRECEDENTS
Article 27 Tax Exemption for Religion	No person shall be compelled to pay any taxes, the proceeds of which are specifically appropriated for promoting or maintaining any particular religion.	Prohibits Taxes , but permits regulatory Fees (<i>Commissioner HRCE v. L.T. Swamiar, 1954; Prafull Goradia, 2011</i>).
Article 28 Religious Instruction	28(1) : Wholly State-funded → No religious instruction. 28(2) : Administered by State but established under Trust → Permitted. 28(3) : State recognized/aided → Voluntary basis.	<i>Aruna Roy v. UOI (2002)</i> (Study of comparative religions does not violate Art 28).

8. Articles 29–30 — Cultural and Educational Rights

• Article 29: Protection of Interests of Minorities

- **29(1)**: Any section of citizens residing in India having a distinct language, script, or culture has the right to conserve the same.
- **29(2)**: Prohibits denial of admission into State-maintained or State-aided educational institutions on grounds *only* of religion, race, caste, language.
- **Key Ruling**: **State of Bombay v. Bombay Education Society (1954)** Art 29(1) applies to all sections of citizens (majority and minority), whereas Art 30 is exclusive to minorities.

• Article 30: Right of Minorities to Establish & Administer Educational Institutions

- **30(1)**: All religious and linguistic minorities have the right to establish and administer educational institutions of their choice.
- **30(1A)**: Added by 44th Amendment (1978): Compensation for compulsory acquisition of minority institution property must not restrict their right.
- **30(2)**: State shall not discriminate in granting aid to minority institutions.
- **Landmark Cases**:
 - T.M.A. Pai Foundation v. State of Karnataka (2002)** 11-Judge Bench held unit for determining minority status is the State, not the whole of India.
 - PA Inamdar v. State of Maharashtra (2005)** State cannot impose reservation quotas on unaided minority institutions.

9. Article 32 — Right to Constitutional Remedies

Dr. B.R. Ambedkar famously called Article 32 the *"Heart and Soul of the Constitution"*. Supreme Court has original but not exclusive jurisdiction (High Courts under Art 226 share writ jurisdiction).

WRIT	MEANING & PURPOSE	AGAINST WHOM ISSUED / KEY CASE
Habeas Corpus ("To have the body of")	To release a person unlawfully detained by State or private individual.	Public authorities & Private individuals. <i>ADM Jabalpur v. Shivkant Shukla (1976)</i> (Overruled in <i>Puttaswamy</i>).
Mandamus ("We Command")	To command a public official or statutory body to perform a mandatory legal duty.	Public bodies, inferior courts. Cannot be issued against President/Governor or private entities.
Prohibition ("To forbid")	Issued by a higher court to prevent a lower court/tribunal from exceeding jurisdiction.	Judicial and quasi-judicial authorities only. (Preventive in nature).
Certiorari ("To be certified")	Issued by a higher court to quash an order already passed by an inferior court/tribunal without jurisdiction.	Judicial, quasi-judicial, and administrative authorities (<i>State of UP v. Mohammad Nooh, 1958</i>).

WRIT	MEANING & PURPOSE	AGAINST WHOM ISSUED / KEY CASE
Quo-Warranto ("By what authority?")	To prevent illegal usurpation of a public office by an unqualified person.	Substantive public office created by statute/ Constitution. Any citizen can file (locus standi relaxed).

10. Articles 31A–31C — Saving of Certain Laws

- **Article 31A:** Added by 1st Amendment (1951). Protects 5 categories of laws (estate acquisition, taking over management, etc.) from challenge under Arts 14 and 19.
- **Article 31B:** Added by 1st Amendment (1951). Validates laws included in the **Ninth Schedule**.
Landmark Case: **I.R. Coelho v. State of Tamil Nadu (2007)** Laws placed in Ninth Schedule after April 24, 1973 are open to judicial review if they violate basic structure.
- **Article 31C:** Added by 25th Amendment (1971). Laws giving effect to Directive Principles under Art 39(b) and 39(c) cannot be challenged under Arts 14 or 19. (Partially struck down in *Kesavananda Bharati* and reaffirmed in *Minerva Mills, 1980*).

11. Articles 33–35 — Military Powers & Parliamentary Exclusive Competence

ARTICLE	SUBJECT MATTER & KEY CLAUSES	SCOPE & APPLICATION
Article 33	Power of Parliament to modify FRs in their application to Armed Forces, Paramilitary, Police, Intelligence agencies.	Parliament alone (not State legislatures) can restrict FRs of armed forces to ensure discipline and proper discharge of duties. Statutory Acts: <i>Army Act 1950, Navy Act 1950</i> .
Article 34	Restriction on Fundamental Rights while Martial Law is in force in any area.	Indemnifies State servants for acts done during martial law. Martial law is distinct from National Emergency (Art 352).
Article 35	Legislation to give effect to Part III rests exclusively with Parliament .	State legislatures cannot make laws regarding Art 16(3), 32(3), 33, 34, or prescribing punishments for offences under Art 17 and 23. Ensures uniformity across India.

Complete Master Teaching Reference & Study Guide — Indian Constitutional Law (Part III: Articles 12–35)